BEYOND SMOKE AND MIRRORS

MEXICAN IMMIGRATION IN AN ERA OF ECONOMIC INTEGRATION

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the annual arrival of 2 billion migradollars generated $6.5 billion worth of additional production in Mexico, with particularly strong multiplier effects in the manufacturing and service sectors.

In 1986, however, this stable system came to an end as politicians in the United States manufactured an immigration "crisis" and created the false impression that the border was out of control. These constructions represented a form of symbolic politics that served domestic political purposes but had little to do with the real circumstances of Mexico-U.S. migration. Nonetheless, they led to a variety of legislative actions and policy shifts that had profound consequences for Mexico-U.S. migration. After 1986 the United States unilaterally embarked on a series of repressive policies, police actions, and political campaigns that dramatically changed the rules of system operation, ushering in a new era in Mexico-U.S. migration and guaranteeing that in the future its consequences would be neither benign nor limited.

Chapter 5

A Wrench in the Works: U.S. Immigration Policies After 1986

THE YEAR 1986 was pivotal for the political economy of North America. In that year, two events signaled the end of one era and the beginning of another: Mexico's entry into the General Agreement on Tariffs and Trade (GATT) and passage by the U.S. Congress of the Immigration Reform and Control Act (IRCA). In Mexico a new political elite had succeeded in overcoming historical opposition within the ruling party and orchestrated the country's entry into GATT. Then they boldly approached the United States to forge a new alliance that would ultimately create a free trade zone stretching from Central America to the North Pole. Even as U.S. officials worked closely with Mexican authorities to integrate the North American economy, however, they simultaneously acted to prevent the integration of its labor markets. Rather than incorporating the movement of workers into the new trade agreement, the United States insisted on the right to control its borders, and to underscore its resolve Congress passed IRCA.

Thereafter the United States would pursue a politics of contradiction—simultaneously moving toward integration while insisting on separation. In time-honored fashion, the United States sought to have its cake and eat it too—to move headlong toward a consolidation of markets for capital, goods, commodities, and information, but simultaneously to pretend that North American labor markets would remain separate and distinct. In the ensuing years the United States would spend increasing financial and human resources to demonstrate to the American public that the border was under control and *not* porous with respect to migrants or drugs, even as it was becoming increasingly permeable with respect to numerous other flows. Ad-

mitting Mexican workers while pretending not to do so was nothing new. But whereas this sort of hypocrisy could be maintained at a relatively low cost during the bracero and undocumented eras, after 1986 the illusion became increasingly expensive to sustain, not only for the migrants themselves but for citizens and taxpayers on both sides of the border.

The Roots of North American Integration

In the decades leading up to the 1980s, Mexico's political economy of import substitution industrialization (ISI) moved steadily toward its demise. As early as 1968, the limitations of ISI had become apparent. In that year what began as a small, localized movement of university students turned into a mass mobilization against the Mexican state. Demonstrators questioned the legitimacy of the political elite that had governed Mexico since the 1910 Revolution and challenged its commitment to social justice and democracy. Although Mexico's state-centered program of economic growth had succeeded in building an industrial infrastructure and creating an urban middle class, it had also brought about rising inequality, a stagnant agrarian economy, a growing concentration of urban poverty, widening regional imbalances, and a self-serving bureaucracy that showed little interest in relinquishing power or allowing reform.

The political mobilization of the late 1960s was ultimately put down by a bloody massacre of student demonstrators in Mexico City (Poniatowska 1971). Although the massacre quelled the uprising for the moment, it severely undermined the government's standing among its citizens and thoroughly compromised its legitimacy. In 1970 a new president, Luis Echeverría, assumed power and sought to restore the state's lost stature. Having been minister of the Interior at the time of the student massacre, and therefore at least formally responsible for the slaughter, he no doubt felt a special need to make amends.

Echeverría sought to refurbish Mexico's revolutionary credentials at home and abroad. Internationally he espoused an ideology of Third World liberation, cultivated relations with Cuba and other leftist governments, and made a point of voting against the United States in public forums such as the United Nations and the Organization of American States (OAS). Domestically he launched a massive expansion of the Mexican state, characterized by a sharp increase in social spending, a growing nationalization of private industry, and a rapid expansion of the federal bureaucracy. Over the course of his presidency the number of state-owned enterprises doubled, from 491 in

1970 to 845 in 1976; over the same period total government employment grew from 616,000 to 2.1 million (Centeno 1994). To protect the inefficient industries he had acquired for the Mexican state, Echeverría tightened barriers to trade by raising tariffs, imposing new quotas, and enacting regulations.

Prior to 1970 Mexican presidents had relied largely on domestic capital to promote national economic development, but domestic sources were insufficient to support Echeverría's ambitious plans. His grandiose spending habits also found little sympathy in the Ministry of the Treasury or among the nation's bankers. He therefore turned to foreign banks and international lending institutions, which happily provided the funds. Rather than channeling the money through the Ministry of the Treasury (Secretaría de Hacienda), however, Echeverría absorbed it directly into the Office of the Presidency, bypassing a traditional check on presidential power (Centeno 1994). The Office of the Presidency also assumed direct control over the distribution of these funds, thereby usurping the patronage functions traditionally managed by the Ministry of the Interior (Secretaría de Gobernación) and further centralizing the president's power and control over the Mexican state.

By 1976 Echeverría's nationalizations, spending, and populist rhetoric had deeply alienated Mexico's private sector. Mexico would have had a difficult time paying its foreign debt under any circumstances, but a loss of faith by entrepreneurs and foreign bankers sparked a massive flight of capital that turned a liquidity problem into a full-blown economic crisis. During his last year in office Echeverría was forced to devalue the peso, which caused inflation to soar to 27 percent per annum. The state's fiscal problems, in turn, compelled him to scale back social spending; to compensate for these humiliating retreats, in his final months he rashly expropriated millions of hectares of private land for ostensible redistribution to peasants. (It was mostly returned by his successor.) In the end Echeverría managed to antagonize virtually all sectors of society without restoring the luster of the Mexican miracle, thus deepening the crisis of the state.

As the date of the presidential succession approached (December 1, 1976), Mexico swirled with rumors of military plots, impending coups, guerrilla uprisings, and assassinations. When the new president, José López Portillo, finally assumed office, Mexico seemed on the brink of economic and political collapse. The private sector was worried about the huge foreign debt and the state's recent interventions in the economy, while international lenders doubted Mexico's ability to repay its ballooning foreign debt. López Portillo needed to reassure both audiences, and he quickly worked to demonstrate his

commitment to moderation and reform. In a symbolic gesture, he sent former President Echeverría to the South Pacific as ambassador to Fiji, and in early speeches he promised fiscal reforms and restrained spending. Meanwhile, he discarded the populist poses and leftist rhetoric in favor of a more businesslike approach to national government.

Within a few months these gestures became superfluous, however, for shortly after assuming office López Portillo learned from the state oil company that vast new petroleum deposits had been discovered in the Mexican waters of the Gulf of Campeche. With oil prices spiraling upward, Mexico suddenly emerged as a major oil producer, at least potentially. With visions of petrodollars dancing in their heads, lenders backed off their demands for structural reform and reopened the spigots of capital.

Thanks to the miraculous and unanticipated discovery of oil, López Portillo was literally able to buy his way out of trouble. Rather than addressing the serious economic problems responsible for the problems of 1968 and 1976, he was able to put off the day of reckoning. Assuming that oil prices would remain at astronomic levels, he accelerated social spending and continued Echeverría's expansion of state employment. At the same time he borrowed heavily to cover the huge capital costs of extracting undersea oil and bringing it to market. In the heady days of the late 1970s, López Portillo was not the only leader of an oil-rich country to feel that his nation was somehow immune from the constraints and exigencies of the market. Awash in petrodollars, he believed he did not have to make difficult choices between consumption and investment.

By the dawn of the 1980s, however, new petroleum producers had entered the market, and the oil cartel began to lose its grip on supplies. After years of borrowing to undertake capital investments, oil prices began to fall just as Mexican oil really began to flow. López Portillo was suddenly denied the revenue stream he had counted on to pay off the massive foreign debt, and in the summer of 1982 he was forced to break his promise to defend the Mexican peso "like a dog." The currency was floated and promptly lost half its value. Faced with billions of dollar-denominated loans, Mexico was forced to suspend payments on its foreign debt, which were eating up 43 percent of the national budget (Wilkie 1990).

This time there were no miraculous discoveries to save the situation: the day of reckoning had finally arrived. Over the next year inflation soared to an annual rate of 100 percent, GDP fell by 8 percent, real wages dropped by 21 percent, and the gulf between rich and poor widened markedly (Sheahan 1991; Cortés and Rubalcava 1992). Unable to accept responsibility for the disaster, López Portillo blamed entrepreneurs and bankers for disloyalty and berated them for sending their assets abroad (a course of action that he and his ministers were also pursuing). Against the counsel of his advisers, and with just three months left in office, he suddenly nationalized Mexican banks in a fit of pique that represented the largest single expropriation of private property since the 1930s.

The private sector was stunned, and the move only deepened Mexico's financial problems, which grew into a prolonged economic crisis known as the "lost decade." From 1980 to 1989 Mexican GDP per capita fell by 9 percent, real minimum wages plummeted by 47 percent, and the percentage of families in poverty increased from 45 to 60 percent (Sheahan 1991). López Portillo's bank nationalization proved, however, to be the high-water mark of the old political economy. With a total of 1,155 state-owned entities and one out of every five workers employed either directly or indirectly by the Mexican state, ISI in 1982 had finally reached its limit. Thereafter the tide of state ownership would recede: the neoliberal revolution had begun.

The massive expansion of the state under Echeverría and López Portillo brought to power a new class of forward-looking technocrats who would be instrumental in imposing a new order—neoliberalism—on the Mexican political economy. Effective management of the huge state bureaucracy and its far-flung empire of para-state enterprises required centralized control and planning. To coordinate the growing state apparatus, late in his term Echeverría had instituted a national planning council headed by López Portillo, and when the latter assumed office, he formalized the planning process by creating the Ministry of Planning and Budget (Secretaría de Planificación y Presupuesto), better known by its initials SPP.

All other governmental departments and ministries were required to submit plans to the SPP, and it alone developed the global plan to which all agencies had to conform. It had the final say on policies and priorities, taxing and spending, program creation and elimination. The SPP functioned as a super-ministry with the power to approve or deny ventures throughout the state. Henceforth, whoever was in charge of the SPP would have de facto control of the state itself (Centeno 1994), and the minister of SPP thus became the most powerful person in Mexico after the president himself. It is no coincidence that the next two Mexican presidents were former SPP ministers.

The tasks of planning and budgeting, of course, rely heavily on quantitative data, rational analysis, and technical skills. Those advancing in the new ministry were young (in their thirties and forties) and U.S-educated, with graduate degrees in economics, public ad-

ministration, or some technical specialty, usually from a prestigious private university. (The next three presidents would hold advanced degrees from either Harvard or Yale.) Growing up in and around Mexico City during the relative prosperity of the economic miracle, and coming from a homogenous class background, the new technocrats had great faith in the soundness of their analyses and their ability to foresee and solve Mexico's problems. With their advanced training, elite educations, and powerful positions in government, they came to believe they had a special mandate to modernize the nation and lead it forward into the next century.

In their view, Mexico's difficulties stemmed from its inward-looking, state-centered economy. They believed that growth, prosperity, and stability could be had only by creating a new, more liberal political economy connected to the global regime of trade and investment. Unlike earlier generations of Mexican politicians, they were neither suspicious nor resentful of the United States. Having been educated there, they understood it well and sought to capitalize on Mexico's privileged geographic position adjacent to the world's largest market to catapult it to the ranks of the First World.

The 1968 student massacre and the crises of 1976 and 1982 had thoroughly discredited the old regime, leaving it with little popular support. After 1982 modernizing neoliberals in the SPP took advantage of this opening and used their powerful positions to impose their technocratic vision on an often reluctant country, frequently running roughshod over the ruling party's older politicos, whom they derisively called "dinosaurs." President Miguel de la Madrid laid the foundations for the neoliberal revolution by lowering tariffs, abandoning quotas, easing state regulations, improving tax collections, rescheduling the foreign debt, privatizing enterprises, limiting wage increases, cutting social spending, balancing the budget, and attacking (at least symbolically) the corruption of the López Portillo era. In the fourth year of his term he decisively broke from the past by securing Mexico's entry into GATT, which in both real and symbolic terms inaugurated the neoliberal era in Mexican society.

Rather than seeking to create closed internal markets, de la Madrid and the neoliberals sought to attract foreign investment to produce goods for sale on international markets, following the model of export industrialization used so effectively by the "Asian Tigers" of the 1970s. Despite de la Madrid's reforms and his relative success in restructuring the country economically, however, the crisis was hardly over. As oil prices experienced a new round of deflation, economic conditions deteriorated and domestic inflation reached new heights,

soaring to 106 percent in 1986 and 159 percent in 1987. Not surprisingly, given the economic pain it was inflicting on citizens, the government had not regained the legitimacy it lost in 1968.

As a result, the presidential succession of 1988 proved unusually difficult for the ruling party to manage. Historically the president simply named his successor, who was then duly nominated by the ruling party and ratified by national election. De la Madrid named as his successor Carlos Salinas de Gortari, but rather than rubber-stamping the nomination, party traditionalists protested. When they were overruled, some broke with the party to launch an independent left-wing campaign led by Cuautehmoc Cárdenas, son of Mexico's most revered president, who eventually went on to form a party known as PRD (Partido de la Revolución Democrática). At the same time the center-right mobilized under the banner of an old but revitalized party, the PAN (Partido de Acción Nacional).

These mobilizations against the state and its ruling party proved to be surprisingly popular and successful. In the end Salinas was barely elected to the presidency, officially receiving the slimmest majority in Mexican history (50.4 percent), and this victory was probably achieved only through massive electoral fraud. When the new president assumed office on December 1, 1988, the power and prestige of the state, along with the Mexican economy, seemed at a low ebb. Not only was Salinas widely considered to be illegitimate, but there was growing dissent within the ruling party as the "dinosaurs" vented their displeasure with the neoliberal technocrats who, for the moment, had gained the upper hand.

At the beginning of the Salinas administration, therefore, the new order was far from locked into place. On the contrary, the neoliberal hold on the state and the state's hold on society both seemed tenuous. The ponderous ship of the Mexican political economy would take time to reverse course. The structural changes introduced by de la Madrid were unpopular both inside and outside the ruling party, and their future seemed dubious. Under Mexico's system of centralized presidential power, it was entirely possible for a future president to undo everything accomplished by the neoliberals with the stroke of a pen.

As a former minister of SPP and a Harvard-trained technocrat himself, President Salinas was determined to carry forward the neoliberal agenda, and under his administration the pace of privatization accelerated dramatically, the federal payroll was further slashed, government administration continued to be streamlined, and state participation in the economy was greatly reduced. Still, there was the

troubling problem of institutionalizing the reforms and making them permanent. To solve this problem, Salinas broke with tradition and boldly turned toward the United States.

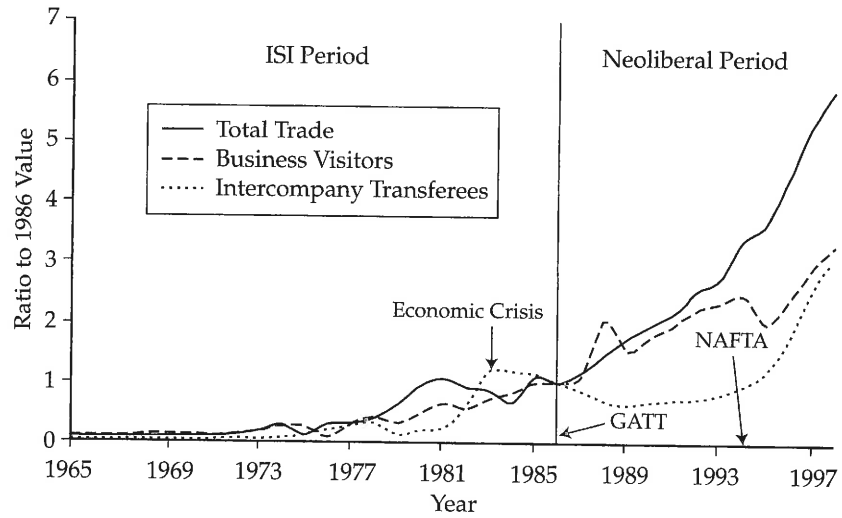
Specifically he proposed joining the free trade agreement that had already been negotiated between Canada and the United States, a move that would tie the neoliberal Mexican economy to a treaty with its powerful northern neighbor. It would be extremely difficult, if not impossible, for a future Mexican president to abrogate a treaty with the United States, no matter how powerful he was. Moreover, the creation of a North American market would bring about permanent institutional changes that would make a return to the old regime costly in practical and financial terms as well.

The structural and fiscal reforms introduced by Presidents de la Madrid and Salinas naturally met with great favor in Washington; indeed, U.S. officials had long recommended many of the changes that they had implemented. The first Bush administration warmly embraced Salinas's overture; after receiving authority from Congress for "fast-track" negotiation, it began talks to create an expanded North American Free Trade Agreement (NAFTA) that would embrace Mexico. The treaty was successfully negotiated and ratified by the U.S. Senate in 1993, with strong support from the new president, Bill Clinton. NAFTA took effect on January 1, 1994, and from that date forward the United States was officially committed to a policy of economic integration between itself and its neighbor to the south.

The imposition of the neoliberal regime after 1986 immediately accelerated cross-border flows of all sorts. In figure 5.1, we show trends in total trade (imports plus exports) and two kinds of international business migration (temporary entries for business purposes and intracompany transferees), all derived from official Immigration and Naturalization Service (INS) and International Monetary Fund (IMF) statistics. We date the beginning of the neoliberal era from Mexico's entry into GATT, and to show trends on a common scale we divide each series by its 1986 value.

Total trade between Mexico and the United States began at relatively modest levels in 1965 and for the next decade changed very little. From 1976 to 1982 trade expanded as Mexico borrowed heavily to finance consumption and investment during the oil boom, causing a surge in U.S. exports. After the onset of the economic crisis in 1982, however, trade ceased to grow and fluctuated around $30 billion, roughly maintaining this value through 1986. Thereafter, trade accelerated at an unprecedented rate, and the rate of increase appears to have received an added boost after the implementation of NAFTA in

Figure 5.1 Cross-Border Business Exchanges, 1965 to 1998 (1986 = 1.0)



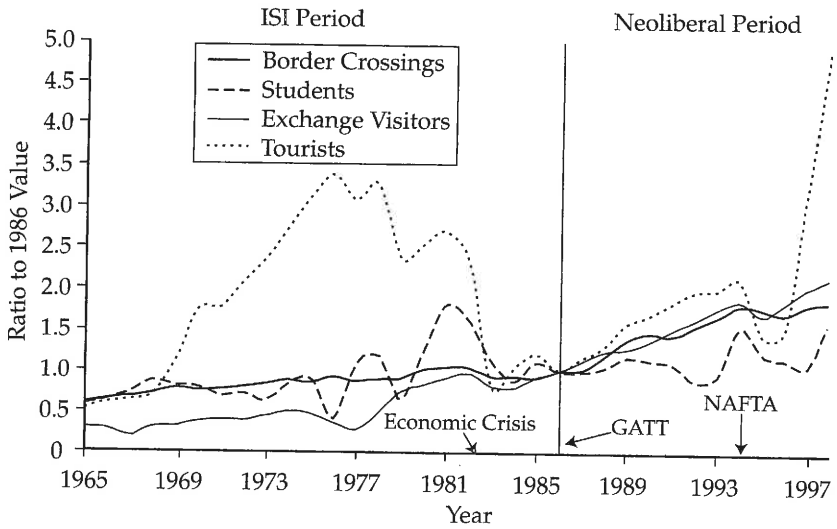
Source: International Monetary Fund; U.S. Immigration and Naturalization Service.

1994. By 1997 total trade stood at record levels and was five times its 1986 value, a rather stupendous increase in little over a decade.

The rise in trade was paralleled by an increase in the cross-border circulation of Mexicans for business purposes. After Mexico joined GATT, the number of Mexicans entering the United States on nonimmigrant business visas increased almost threefold, from 128,000 to 373,000 per year. The number of intracompany transferees coming into the United States also climbed, from 4,300 per year in 1986 to 11,000 in 1997. Although we do not show the data here, the number of Mexican treaty investors admitted to the United States also shot up in the post-GATT period (jumping from 73 to around 1,700 per annum).

The growth of trade promoted other cross-border movements as well, such as exchange visitors and people legally crossing the border in cars and trucks or on foot. Trends in these indicators of binational integration are graphed in figure 5.2, and again the data are divided by 1986 values to create a common scale. As can be seen, the number of people flowing into the United States through legal ports of entry increased very gradually from 1965 to 1979 and then remained fairly constant until 1986, when the number of crossings stood at 114 million per year. With Mexico's entry into GATT, however, we see a very

Figure 5.2 Cross-Border Movements of Visitors, 1965 to 1998 (1986 = 1.0)



Source: U.S. Immigration and Naturalization Service.

sharp increase in the volume of cross-border traffic, which reached 208 million persons in 1997, nearly twice its 1986 level. The number of exchange visitors similarly changed very little from 1965 to 1977, ranging between 1,000 and 2,000 per year; the number of exchanges rose until 1981, then remained fairly constant (at around 3,000 per year) until 1986. Paralleling the trend observed for border crossings, however, the number of exchange visitors rose rapidly with the onset of the neoliberal period, peaking at 6,100 in 1997, two times its 1986 level.

Figure 5.2 suggests that one form of transnational movement, tourist entry (non-immigrant visitors entering for pleasure), is not a product of the neoliberal era. Indeed, the boom years of Mexican tourism seem to have been from 1970 to 1981, when ISI policies and the oil boom produced an overvalued peso, making U.S. vacations accessible to a large fraction of Mexicans. Tourism crashed along with the economy after the peso devaluation of 1982; it fluctuated at around 600,000 persons through 1986, after which it expanded again. The latter expansion lasted until the peso devaluation of 1994, which initiated another cycle of crash and recovery. Although Mexican tourism has generally expanded under neoliberalism, it has proven to be quite

sensitive to exchange rates and always falls markedly after a significant devaluation, the last of which was in 1994.

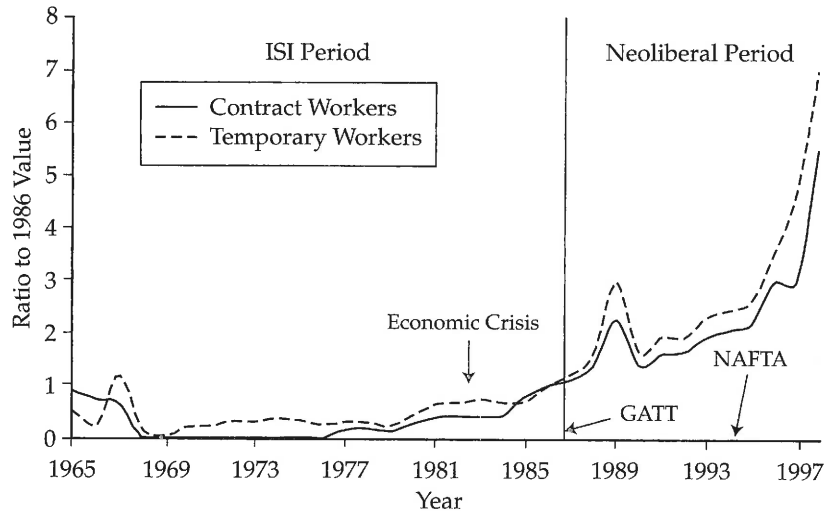
The movement of Mexican students to the United States also appears to be very sensitive to exchange rates, which determine the relative cost of a U.S. education. Student migration is affected by the fiscal capacity of the Mexican state as well, since the government funds most scholarships used by Mexicans for study abroad. The number of students coming into the United States thus fell sharply in both 1976 and 1982, dates that correspond to major devaluations. The number of students going to the United States remained fairly stagnant from 1982 through 1993. Although the number increased in 1994, it fell once again following the peso devaluation at the end of that year. Today about 11,000 Mexican students enter the United States each year.

The final cross-border flow we consider is the movement of temporary documented workers. Every year the United States admits a large number of migrants with visas that permit work but not permanent settlement. In figure 5.3, we graph the number of Mexicans admitted as contract workers in agriculture (under the H2A visa program) and the total number of Mexicans admitted in any non-immigrant worker category. As can be seen, the two series show little movement until 1986, when both begin to move rapidly upward. Aside from the surge in 1989, the increase has been steady and has generally accelerated over time. By 1997 the United States was admitting around 37,000 Mexicans per year for renewable periods of short-term labor.

The Politics of Separation

As envisioned under NAFTA, North American integration has thus been proceeding at a rapid pace in recent years, and cross-border traffic has multiplied accordingly. In an era of pervasive globalization, Mexico, Canada, and the United States have come together to compete as a single trading bloc, creating a free trade zone within which national borders will grow increasingly porous. Even as the United States has committed itself to integrating most markets in North America, however, it has paradoxically sought to prevent the integration of one particular market: that for labor. Indeed, since 1986 the United States has embarked on a determined effort to restrict Mexican immigration and tighten border enforcement. U.S. policy toward Mexico is inherently self-contradictory, simultaneously promoting integration while insisting on separation.

Figure 5.3 Cross-Border Movements of Labor, 1965 to 1998 (1986 = 1.0)



Source: U.S. Immigration and Naturalization Service.

Manufacturing a Border Crisis

This sort of schizophrenia toward Mexico is nothing new. If anything, it is typical. Throughout the twentieth century the United States regularly encouraged or welcomed the entry of Mexican workers while publicly pretending not to do so. Only the mechanism of self-deception has changed over time. The current institutional arrangement has its roots in the late 1970s and early 1980s. As we saw in chapter 4, there is little statistical evidence that undocumented migration was accelerating at this time. What did change was how political and bureaucratic actors framed the issue.

Neither the numbers nor the legal status of immigrants is particularly relevant to understanding the policy regime that emerged after 1986. More important are U.S. political and economic conditions, which provided a context that allowed immigration to be framed in crisis terms. Economically the 1970s were painful for Americans. The Arab oil embargo doubled and then tripled petroleum prices after 1973, sending industrial nations into a deep and prolonged recession. The U.S. dollar lost more than half its real value between 1970 and 1980, the rate of unemployment increased by 50 percent, median income fell by 5 percent in real terms, and income inequality rose by 15

percent. Throughout the decade the economy remained in the doldrums and lost ground to economies in Europe and Asia. By almost any measure, Americans were worse off in 1980 than they had been a decade before (as presidential candidate Ronald Reagan made sure to remind voters that year).

In geopolitical terms, the United States was faring little better: the tide of the cold war seemed to turn against it. In 1973 the U.S. military withdrew from Southeast Asia, and two years later the South Vietnamese government collapsed, resulting in a chaotic exodus that sent hundreds of thousands of refugees streaming toward American shores. At the same time Fidel Castro remained firmly ensconced in Cuba, Eastern Europe continued under Soviet domination, China had not yet turned toward the market, and left-wing guerrilla movements were threatening U.S.-backed governments throughout Latin America and the Caribbean. The 1970s ended with the takeover of the U.S. embassy in Tehran by revolutionary Islamic students and U.S. State Department employees being held hostage.

By 1980, therefore, American confidence was at a low ebb. Successive rounds of recession and inflation and perceived humiliations at home and abroad had accumulated to produce an electorate that was fearful, angry, and looking for someone or something to blame. The Vietnam War had been lost, the Sandinistas were in power, real wages were declining, and the rich were getting richer while most families had to work harder just to stay in place. In reaction, U.S. voters expelled the hapless administration of President Jimmy Carter and turned to the magnetic self-confidence of Ronald Reagan. It was "morning in America," and having gained control of both the White House and Senate, Reagan and the Republicans sought to remake the U.S. political economy.

Faced with voter anger over intractable economic problems that lacked obvious or easy solutions, Reagan fell back on two time-honored strategies—ideology and scapegoating. Ideologically Reagan moved the nation sharply to the right: the new administration put a strong emphasis on anticommunism and had a decided tendency to view all international conflicts through the lens of the cold war. The Soviet Union was "the evil empire," the leftist president of Panama was a "tin horn dictator," and the Sandinistas were a "threat to the regional peace." Enemies of the United States lurked everywhere, national security became the watchword, and much time, effort, and money were put into defending America from enemies at home and abroad.

Under Ronald Reagan, national economic ideology also moved rightward. The free market became the key to prosperity, and barriers

to the market were to be dismantled. The statist vision of the New Deal, in which government safeguards the welfare of the people and protects them from the excesses of capitalism, gave way to a new philosophy of individual initiative, self-reliance, and progress through competition. In keeping with this ideological stance, Reagan led the way in downsizing the state, reducing federal employment, lowering taxes, deregulating industry, breaking unions, and cutting back on social spending. Only in the area of national security was the role of the state strengthened through a sharp increase in military spending, which in fact increased the budget deficit in spite of the other cuts.

Although "Reaganomics" eventually produced an economic boom in the latter half of the 1980s, its immediate effect was to aggravate the economic circumstances that had undermined Carter's presidency. By 1983 national unemployment had risen to 9 percent, the dollar had lost another 6 percent of its 1970 value, the poverty rate had risen to 15 percent, median income had declined by another 2 percent, and the rise in income inequality had accelerated. The early 1980s were thus marked by an unusual combination of economic insecurity and cold war hysteria, and it was in the atmosphere of this strange brew that far-reaching changes in U.S. immigration policy took shape.

During the 1980s immigrants increasingly were cast in the role of scapegoats for the nation's ills. Ronald Reagan led the way by framing border control as an issue of national security. As a result of Communist insurgencies in Central America, he foresaw "a tidal wave of refugees—and this time they'll be 'feet people' and not boat people—swarming into our country seeking safe haven from communist repression to the south" (quoted in the *Washington Post*, June 21, 1983). The media immediately picked up on the imagery of the "tidal wave" and extended the metaphor, referring to Latin American migrants as a "steady stream" or a rapidly rising "tide" that was close to becoming a "flood."

The symbolic linkage between immigration and the cold war reached cinematic proportions in 1984 with the release of the movie *Red Dawn*, directed by John Milius. Before any live action appears onscreen, the story is framed by a text scrolling slowly from bottom to top: "The Soviet Union suffers the worst harvest in 55 years. Labor and food riots in Poland. Soviet troops invade Cuba and Nicaragua. They reach troop strength goals of 500,000. El Salvador and Honduras fall. Green Party gains control of West German Parliament. Demands withdrawal of nuclear weapons from European soil. Mexico plunged into revolution. NATO dissolves. The United States stands alone . . ." (quoted from *Red Dawn*, Valkyrie Films).

The scene then opens on a small-town high school located on the plains at the edge of the Rocky Mountains. Classes are just beginning when suddenly the morning sky is filled with hundreds of Russian- and Spanish-speaking paratroopers who, fully armed, take up positions around the school. When a teacher charges outside to investigate, he is cut to pieces by machine-gun fire. The school erupts in pandemonium, and in the ensuing melee a group of high school boys, led by several star athletes, pile into a pickup truck and escape to the mountains (stopping, naturally, at a guns-and-ammo store along the way). There they organize themselves as guerrilla freedom fighters called "the Wolverines," after their school sports team. The rest of the movie covers their valiant armed struggle against the mixed Soviet-Latino army of occupation.

In 1986 President Reagan exacerbated the cold war hysteria by linking border control not only to national security but to the threat of foreign terrorism. In a televised speech, he reminded viewers that "terrorists and subversives are just two days' driving time from [the border crossing at] Harlingen, Texas" (quoted in Kamen 1990). A year later Reagan's cabinet-level Task Force on Terrorism warned that extremist groups could be expected to "feed on the anger and frustration of recent Central and South American immigrants who will not realize their own version of the American dream" (quoted in Dunn 1996). By the late 1980s the tidal metaphor of a "flood" had given way to martial images of threatened "invasion." The border was "under siege," Border Patrol officers were "outgunned," and they constituted a "thin green wall" trying to "hold the line." Loss of control became the dominant narrative used by politicians and the media to discuss the border and movements across it (Andreas 2000). It was in this atmosphere that a new regime of immigration control would emerge.

As early as 1982 the Reagan administration had introduced legislation to give the president new authority to declare "immigration emergencies" of up to 120 days, during which time the border could be sealed by the military and aliens deemed threats to national security could be rounded up and detained without warrant. Although the proposed immigration emergency bill failed to pass Congress, portions of it would resurface later in other legislation. By 1986, however, the Reagan administration had created the Alien Border Control Committee to develop contingency plans for sealing the border and arresting aliens, and the Federal Emergency Management Agency (FEMA) had held roundup exercises with personnel from the Department of Defense (Dunn 1996).

The demonization of Latino immigrants as "invaders" and "terrorists," the linking of border control to national security, and the culti-

vation of public hysteria about undocumented migration was not lost on enterprising INS bureaucrats, who detected a means of increasing both their prestige and their resources. The rise of the Immigration and Naturalization Service as a powerful and wealthy bureaucracy began in earnest in January 1992. As undocumented migrants were returning to the United States from their Christmas visits home, the Border Patrol chief in San Diego, Gustavo de la Viña, erected a new fence, deployed additional Border Patrol agents, and installed new detection equipment along the westernmost section of the border, which ran from the port of entry at San Ysidro to the Pacific Ocean.

When they encountered these new obstacles to clandestine crossing, undocumented migrants and smugglers did the obvious thing: they attempted to go around them. The closest unbarricaded sector was the San Ysidro crossing station itself, where the fence stopped just short of the port of entry. In essence, the new border policy funneled all migrants within an extended sector to a single crossing point. Clever smugglers quickly recognized an advantage in the new concentration of people and began organizing "banzai runs" of fifty or more immigrants. Swarms of people would suddenly rush the border, overwhelm the small number of immigration inspectors, and dart into the southbound lanes of Interstate 5, disappearing in the traffic and confusion (Rotella 1998).

As hordes of men, women, and children dashed madly across the border, jumped over highway dividers, and darted through traffic, to the consternation of startled native drivers, Border Patrol Chief de la Viña was waiting with a video crew to capture the moment on tape. The images were then assembled into a public relations video entitled *Border Under Siege* that was released to the public (Rotella 1998). The video was a public relations bonanza for the agency. The dramatic images of undocumented migrants running across the border and risking life and limb to cross an eight-lane freeway quickly became a powerful symbol of "a border out of control." Clearly a national boundary was being "invaded" by "desperate" aliens. Lost in the uproar was the fact that the images were a *direct consequence* of the Border Patrol's own policies—neither the number nor the characteristics of migrants had changed in any significant way.

The scenes depicted in *Border Under Siege* became an important resource for aspiring politicians seeking to exploit illegal migration as a political issue, the most blatant of whom was the Republican governor of California, Pete Wilson. With his state mired in a deep recession triggered by the end of the cold war and the corresponding reduction of defense spending, his 1994 reelection campaign was floundering. He was well behind in the polls when he devised a new

campaign strategy explicitly designed to inflame public anxieties and fears about immigration: blaming the state's economic woes on the federal government's failure to control the border. Using footage taken directly from the Border Patrol video, he produced a television advertisement that featured images of immigrants dashing into traffic as a narrator intoned: "They keep coming. Two million illegal immigrants in California. The federal government won't stop them at the border, yet requires us to pay billions to take care of them." To symbolize his determination to "stop the invasion" of immigrants, Governor Wilson called up California's National Guard, and as the TV cameras rolled, he dispatched them to patrol the border near San Diego. Voters had apparently forgotten that just a few years earlier, as a U.S. senator, Wilson had sponsored legislation to *relax* border controls, and indeed, he regularly employed undocumented workers himself (see Dunn 1996; Andreas 2000).

Lines in the Sand

The framing of border control as an issue of national security, and illegal migration as a military invasion, created a climate in which elected representatives came under increasing pressure to "do something" about the "problem" of undocumented migration. As a result, between 1986 and 1996 the U.S. Congress, three presidents, and several states undertook a remarkable series of actions to reassure citizens that they were working to "regain control" of the Mexico-U.S. border. After 1986 border control became ritualized as a mandatory public performance, and U.S. politicians competed with one another to offer symbolic gestures of how much they cared about undocumented migration. In the words of Peter Andreas (2000, 144, emphasis added), "From the political perspective, the way the media and the public *see* the border is more important than actual deterrence."

The Immigration Reform and Control Act The arrival of a new era of Mexican migration was heralded by the passage, in October 1986, of the Immigration Reform and Control Act. Given an economically vulnerable and fearful electorate, rising hysteria about an alien invasion, and the perceived risk to national security posed by an uncontrolled border, Congress felt compelled to act. Late in the year Senator Alan Simpson (R-Wyo.) and Representative Peter Rodino (D-N.J.) surprised everyone by overcoming the roadblocks to a bill that most observers had long considered to be dead (Fuchs 1990). Through a series of backroom deals, historic compromises, and a delicate balancing of in-

terests, they succeeded in crafting legislation that gave something to everyone and permitted Congress to go on record as taking visible and forceful action to stop illegal migration.

IRCA sought to combat undocumented migration in four ways. To eliminate the attraction of U.S. jobs, it imposed sanctions on employers who knowingly hired undocumented workers. To deter people from trying to enter the United States illegally in the first place, it allocated additional resources to expand the Border Patrol. To wipe the slate clean and begin afresh, it authorized an amnesty for undocumented migrants who could prove continuous residence in the United States after January 1, 1982; the amnesty program was combined with a special legalization program for undocumented farmworkers that was added to appease agricultural growers. Finally, the legislation incorporated most of Reagan's earlier proposed legislation, giving the president new authority to declare an "immigration emergency" if large numbers of undocumented migrants had or were soon expected to embark for the United States—in essence creating the legal foundations for another Operation Wetback.

By enacting employer sanctions, IRCA repealed the famous Texas Proviso, which for years had protected from prosecution persons and firms that hired illegal aliens (Teitelbaum 1986). The new law required employers to verify that workers carried documentation that established identity and the right to work in the United States. Failure to do so could result in harsh penalties, including fines of up to $10,000 and criminal prosecution for repeated offenses (Bean et al. 1989; U.S. Department of Labor 1991). In addition, the Border Patrol received a $400 million supplement to hire additional officers in 1987 and 1988. New funds were also made available to the U.S. Department of Labor to undertake workplace inspections, and a $35 million contingency fund was established to cover costs associated with future "immigration emergencies" (Bean et al. 1989).

IRCA's legalization programs ultimately provided residence documents to more than 3.0 million persons: 1.7 million "legally authorized workers" (LAWs—those demonstrating a long-term residence in the United States) and 1.3 million "special agricultural workers" (SAWs—people showing prior employment in U.S. agriculture). Of those legalized, 2.3 million (three-quarters of the total) were Mexicans—1.3 million LAWs and about 1 million SAWs. In Los Angeles County alone, some 800,000 former undocumented migrants were legalized, and in six other metropolitan areas the tally exceeded 100,000 (U.S. Immigration and Naturalization Service 1992). Unlike most legal resident aliens, however, those who were legalized under IRCA were required to take English-language and civics classes. Reflecting the

cold war hysteria and national security obsessions of the time, Congress chose to push the new immigrants very deliberately and forcefully toward U.S. citizenship. To placate growers and ethnic lobbies, Congress was grudgingly prepared to let them in—but they damn well better learn how to speak English and be good Americans.

The Immigration Act of 1990 Despite expectations that IRCA would somehow slow Mexican immigration, by 1990 it was clear that the legislation was not working as planned. Although border apprehensions fell in the period 1987 to 1989, by 1990 they were once again on the rise, increasing 26 percent over the prior year. Moreover, it turned out that the 2.3 million Mexicans who had been legalized under IRCA all had relatives in Mexico, and legalization would dramatically increase the odds that these relations would themselves migrate to the United States without documents (Massey and Espinosa 1997). Legalization also had a ripple effect on legal immigration as spouses and dependents of IRCA-legalized migrants suddenly qualified for visas under the preference system. It also became apparent that a large share of the 1.1 million SAW legalizations had been based, in all likelihood, on fraudulent claims. According to Philip Martin, Edward Taylor, and Philip Hardiman (1988), the number of people who were legalized in California under the SAW program (672,000) was *three times* the size of the state's entire agricultural workforce during the qualifying period. Rather than discouraging illegal migration, IRCA actually promoted it.

With both legal and illegal migration from Mexico still on the rise, Congress returned to the drawing board and in 1990 passed another major revision of U.S. immigration law. The 1990 Immigration Act focused more strongly on border control, authorizing funds to hire another one thousand Border Patrol agents. It also tightened employer sanctions, streamlined criminal and deportation procedures, and increased penalties for numerous immigration violations. The act did not, however, focus entirely on the border, for it also sought to impose limits on the total number of immigrants who could be admitted in any single year.

The perceived need for limits stemmed from the fact that a growing fraction of immigrants were entering the United States through categories that were not subject to numerical limitation. Of the 1.5 million legal immigrants admitted to the United States in 1990, for example, only 298,000 (just under 20 percent) were subject to numerical limitation; the rest were spouses, minor children, or parents of U.S. citizens, or they were refugees. Clearly immigration was exceed-

ing the worldwide ceiling of 270,000 that Congress had envisioned in 1980.

In response, the 1990 act sought to cap total immigration to the United States. It fixed a temporary cap of 700,000 immigrants per year through 1994, at which point the cap fell to 675,000 per year. More pointedly, the act sought to cap family immigration (the category under which most nonquota immigrants entered) at just 480,000 per year. Under the 1990 act, immediate relatives of citizens could still enter the United States without numerical restriction, but rather than entering *in addition to* those admitted under numerically restricted categories, in the future they would be *subtracted from* the following year's family quota of 480,000. Although lawmakers sympathetic to immigrants opposed these caps, they were unable to block them. They did succeed, however, in inserting language that made the caps "flexible" in that no more than 226,000 visas could be subtracted from the family quota in any given year. In essence, it permanently subtracted these from numerically limited categories, further lengthening already long waiting times.

The 1990 act also sought to influence the national origins of immigrants. By the late 1980s immigrants were coming overwhelmingly from Asia and Latin America. In 1990, for example, 22 percent of those legally admitted came from Asia, and 63 percent came from Latin America, with Mexico alone accounting for 44 percent of the total. The dominance of Mexico stems from the fact that a majority of those admitted in 1990 came in under IRCA's legalizations, among whom Mexicans were predominant. When IRCA immigrants are subtracted, the prevalence of Mexicans drops to 8 percent and Latin Americans to 20 percent, with Asians rising to 46 percent.

Under any scenario, however, the vast majority of immigrants in 1990 were definitely not Europeans. Although reluctant to admit an actual preference for immigrants of European origin, there was substantial talk in Congress about certain regions being "underrepresented" in the immigrant flow (and they were not thinking of Africa). Thus, in addition to capping the number of family visas, Congress expanded the number of visas going to skilled, well-educated job-seekers, who were expected to come mainly from developed nations. The 1990 act also created a new category of "diversity" visas. Set at 55,000 per year, visas in this category were to be distributed randomly to applicants from countries that had been "adversely affected" by the 1965 Immigration and Nationality Act (those whose share of total immigration had fallen after 1965—in other words, European nations). Senator Edward Kennedy of Massachusetts was even able to insert a special provision that from 1992 through 1994, stated that

48,000 of these diversity visas had to be reserved for natives of Ireland. During this brief period it was virtually impossible to migrate illegally from Ireland!

State Initiatives Although immigration is mostly a matter of federal policy, during the 1980s a variety of states jumped onto the anti-immigrant bandwagon. Most state actions were symbolic gestures with few practical consequences; they simply provided voters or legislators with a tangible means of registering their dislike of foreigners. By far the most common vehicle was the circulation of an initiative to make English a state's official language. Prior to 1980 only five states had enacted such a provision, but by 1998 the number had swollen to twenty-five (according to the website www.us-english.org). Most of these referenda were passed in the brief period between 1984 and 1988, with particularly heavy activity in 1987 (when five states made English their official language).

Although such gestures, as intended, irritated Latinos and Asians, they had virtually no effect on their daily lives, and Los Angeles did not end up being renamed "The Angels." The anti-immigrant hysteria stirred up by Governor Pete Wilson in California, however, did lead to the circulation and passage of Proposition 187, a referendum that aspired to more concrete actions. This law proposed to prohibit undocumented migrants from using publicly provided social services, including public schools. It also required state and local agencies to report suspected illegal aliens to the California attorney general and the INS, and it made the manufacture, distribution, sale, or use of false citizenship or residence documents a felony under the law. After its lopsided passage by voters, the terms of the proposition were immediately challenged in court by the American Civil Liberties Union (ACLU) and other groups. Although most of its provisions were ultimately declared unconstitutional and never went into effect, the proposition provided an important rallying point for mobilization against immigrants and sent a strong signal to officials in the nation's capital.

Prevention Through Deterrence Early in the Clinton administration (in 1993 and 1994), the INS developed a new border strategy that came to be known as "prevention through deterrence." The idea was to prevent Mexicans from crossing the border illegally in order to avoid having to arrest them later (Andreas 2000). The strategy began in September 1993, when the Border Patrol chief in El Paso, Silvestre Reyes, on his own initiative launched "Operation Blockade" as an all-out effort to prevent illegal border crossing within El Paso, Texas. Within a few months immigrants had been induced to go around Silvestre's

imposing wall of enforcement resources, and traffic through El Paso itself was dramatically reduced.

The policy was extremely popular with El Paso's residents. Although they were overwhelmingly of Mexican origin themselves, they had grown weary of the unwelcome visitors. A survey carried out by a local nonprofit organization revealed that what bothered El Paso residents was not undocumented migrants per se, but the fact that they frequently stopped in yards to drink water and rest. It was thus the invasion of private space that people did not like; if the migrants had been invisible or remained in public areas, few would have cared.

As a result of the operation, Reyes was lauded as a local hero and ultimately went on to be elected to Congress. Naturally his superiors in Washington, D.C., took note of the favorable publicity and the apparent success of Operation Blockade. After being renamed "Operation Hold-the-Line," to assuage Mexican sensibilities, its strategy and tactics were incorporated into the Border Patrol's strategic plan for 1994 (U.S. Border Patrol 1994). In October of that year the INS launched a second operation using the approach pioneered by Silvestre Reyes in El Paso, this time along the busiest stretch of border in San Diego.

"Operation Gatekeeper" saw the installation of high-intensity floodlights to illuminate the border day and night, as well as an eight-foot steel fence along fourteen miles of border from the Pacific Ocean to the foothills of the Coast Ranges. Border Patrol officers were stationed every few hundred yards behind this formidable wall (which came to be known as the "tortilla curtain"), and a new array of sophisticated hardware (motion detectors, infrared scopes, trip wires) was deployed in the no-man's-land it fronted (see Dunn 1996). As in El Paso, the operation was a huge success. From being the busiest point on the entire border, San Diego became positively tranquil, even boring, for Border Patrol officers who were forced to sit in their vehicles staring at a blank wall for hours on end. Operation Gatekeeper put an end to the chaotic images of migrants running through traffic that had so troubled California's voters. Once again, the border appeared to be "under control."

Of course, throwing up blockades in El Paso and San Diego did not really stop undocumented migrants from entering the United States; it simply channeled them to other, less visible locations along the two-thousand-mile border. Passage through remote mountains, high deserts, and raging rivers had been too costly and risky to undertake as long as San Diego and El Paso remained relatively open, but once Operation Hold-the-Line and Operation Gatekeeper made

these sectors difficult to traverse, the prospect of crossing in more distant and dangerous areas did not look so bad. Indeed, crossing in remote areas, which tended to be lightly patrolled, had certain advantages.

One immediate result of the Border Patrol crackdowns, therefore, was to deflect undocumented migrants to new crossing points. As a result, the agency was soon compelled to expand its operations geographically and to launch additional operations in other sectors. In 1995 "Operation Safeguard" was unleashed in Nogales, Arizona; in 1996 Operation Gatekeeper was extended to another sixty-six miles of border; in 1997 Operation Hold-the-Line was extended ten miles west into New Mexico; in August 1997 "Operation Rio Grande" was implemented along thirty-six miles of border in southeast Texas; and in 1999 Operation Safeguard was extended east and west from Nogales to Douglas and from Douglas to Naco, Arizona.

The Illegal Immigration Reform and Immigrant Responsibility Act of 1996 The buildup of enforcement resources was further accelerated by Congress through its passage of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996. Once again, legislation focused heavily on deterrence, authorizing funds for the construction of two additional layers of fencing in San Diego and enacting tougher penalties for smugglers, undocumented migrants, and visa overstayers. It also included funding for the purchase of new military technology (magnetic footfall detectors and an electronic finger-printing system) and provided funds for hiring one thousand Border Patrol agents a year through 2001 to bring the total strength of the Border Patrol up to ten thousand officers (Andreas 2000).

Once again, however, an immigration act's provisions were not confined to the border. Taking a cue from California's Proposition 187, the 1996 act declared illegal aliens ineligible to receive Social Security benefits and limited their eligibility for educational benefits, even if they had paid the requisite taxes. It also gave authority to states to limit public assistance to aliens (both legal and illegal) and increased the income threshold required for a legal resident alien to sponsor the immigration of a family member. The latter provision represents another attempt to scale back family immigration: Congress did not expect that many poor immigrant families would be able to meet the new income threshold.

The Personal Responsibility and Work Opportunity Reconciliation Act of 1996 Although billed as a reform measure to "end welfare as we know it," the Personal Responsibility and Work Opportunity Recon-

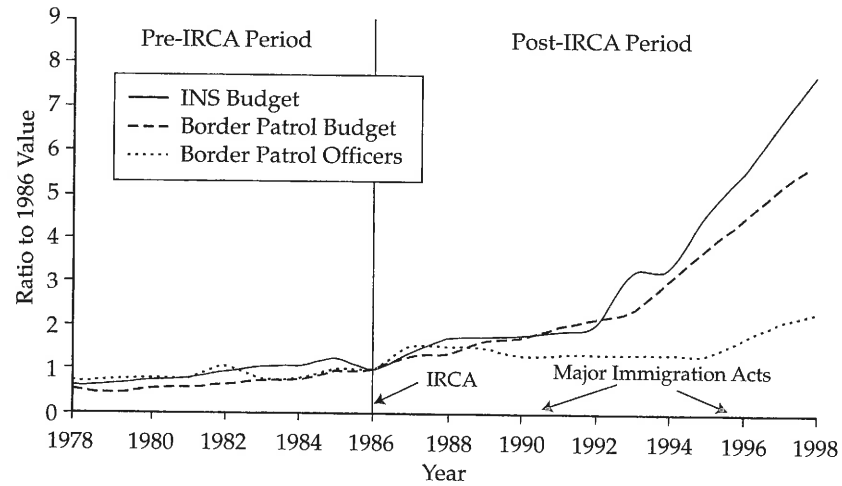
ciliation Act (PRWORA) of 1996 also contained provisions with far-reaching effects on immigration. Again, it copied Proposition 187 in barring illegal migrants from most federal, state, and local public benefits. It also required the INS to verify the immigration status of aliens before they could receive any federal benefit, and it placed new restrictions on the access of legal immigrants to public services, barring them from receiving food stamps or Supplemental Security Income (SSI) and prohibiting them from qualifying for means-tested programs for five years after their admission. Paralleling the 1996 immigration act, it provided states with greater flexibility in setting eligibility rules for legal immigrants and gave them the statutory authority to exclude them from both federal and state programs.

Together the 1996 welfare reform and immigration acts accomplished nationally what Proposition 187 had been unable to do in California—they definitively barred undocumented migrants from Social Security coverage and means-tested programs. But the federal lawmakers went the Californians one better by also drastically reducing the access of *legal* immigrants to public programs. Although unintended, these new provisions suddenly gave legal Mexican immigrants—who historically had displayed very low rates of naturalization—a strong incentive to acquire U.S. citizenship, which would put them in position to sponsor the unrestricted entry of their immediate relatives.

Militarizing the Border

The string of restrictive policies enacted between 1986 and 1996 proved to be bureaucratically beneficial to the Immigration and Naturalization Service, particularly to its enforcement branches. In the space of ten years the Border Patrol went from a backwater agency with a budget smaller than that of many municipal police departments (Teitelbaum 1980) to a large and powerful organization with more officers licensed to carry weapons than any other branch of the federal government save the military (Andreas 2000). By February 1999 the Border Patrol had grown to nearly eight thousand agents and inspectors and was seeking to hire new officers at the rate of more than eighty per month. The agency was so desperate for bodies that it offered a signing bonus of $2,000, and a 1997 article in the *Federal Times* reported that "Border Patrol agent" and "immigration inspector" were among the top ten categories for job growth in the federal workforce (Rivenbark 1997). The INS budget, meanwhile, had reached $4.2 billion by 1999, with over $900 million going to the Border Patrol alone. In the course of this remarkable expansion, the

Figure 5.4 Size and Budget of the Border Patrol and the INS, 1978 to 1998 (1986 = 1.0)



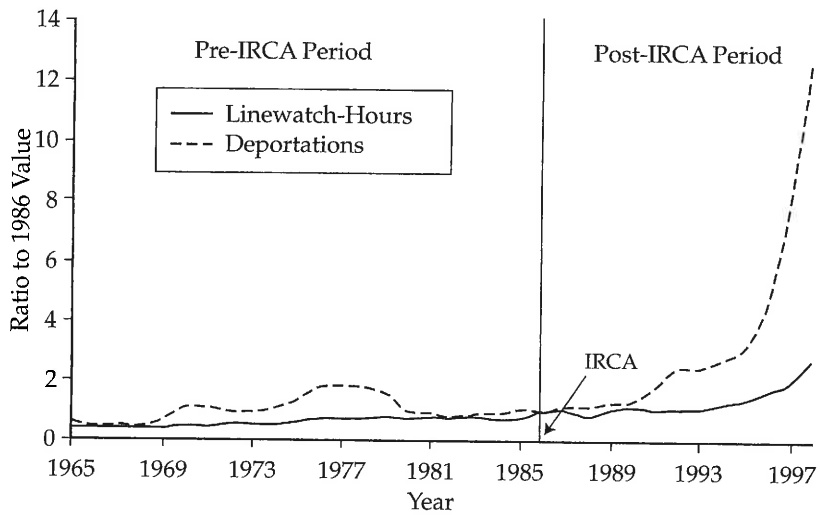
Source: U.S. Immigration and Naturalization Service.

agency acquired a large array of expensive new hardware, including 58 helicopters, 43 airplanes, 355 night-vision scopes, and a host of high-tech devices such as electronic intrusion-detection sensors, closed-circuit TV systems, infrared radar, electronic fingerprinting systems, and microwave communications (Dunn 1996).

The explosive growth in the size and importance of the INS and the Border Patrol is clearly revealed in figure 5.4, which presents the nominal budgets for the two entities as well as the number of Border Patrol officers in the years from 1978 to 1998. To capture trends on the same scale, we once again divide numbers in each series by their 1986 values. As can be seen, the INS and the Border Patrol budgets changed little in the years before IRCA. Then suddenly they doubled between 1986 and 1992 and accelerated exponentially thereafter. By 1998 the INS budget was nearly eight times its 1986 level, and the Border Patrol budget was almost six times its former level. The number of Border Patrol officers more than doubled between 1986 and 1998, reaching around 8,500 in the latter year.

The additional resources and personnel allocated to the INS after 1986 had a pronounced effect on the agency's enforcement efforts. In figure 5.5, we graph the number of linewatch-hours and the number of deportations reported by the Border Patrol, again expressing each

Figure 5.5 Indicators of Immigration Enforcement Effort, 1965 to 1998 (1986 = 1.0)



Source: U.S. Immigration and Naturalization Service.

series relative to its 1986 value. Linewatch-hours are the number of person-hours spent by agents patrolling the Mexico-U.S. border. After 1986 linewatch-hours began to grow, and after 1992 this growth accelerated rapidly. By 1997 the Border Patrol was devoting twice as much time to patrolling the border as in 1986. Deportations of Mexicans surged briefly in the late 1970s but then fell in the early 1980s. After 1986, however, the number of Mexicans deported once again rose very rapidly, increasing by a factor of thirteen over the next ten years.

Enlisting in the War on Drugs

As Mexico and the United States became more integrated and the border grew more porous in the wake of trade liberalization, it became easier not only for people to enter the United States but also for drugs and other contraband. With the invention and popularization of crack cocaine, the demand for drugs soared in the United States in the early 1980s. Initially cocaine was transported through smugglers based in south Florida, but a massive interdiction effort mounted by the U.S. Drug Enforcement Agency (DEA) successfully disrupted the

Caribbean routes and displaced the bulk of the traffic to Mexico. Once smugglers had established operations along the border, U.S. efforts to harden the frontier with respect to drugs came into direct conflict with the goal of softening the border with respect to trade (Andreas 2000).

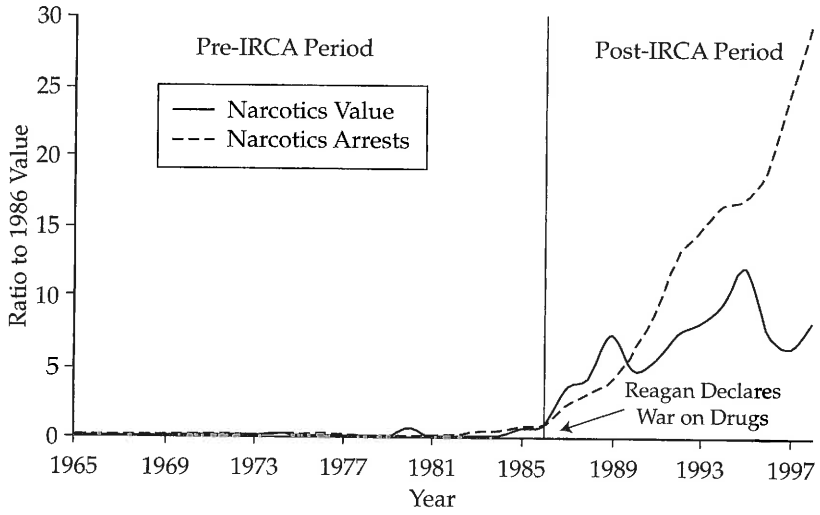
With the deregulation of the Mexican trucking industry and the implementation of NAFTA, an increasing number of long-distance trucks crossed into the United States, along with thousands of cars and buses. Today an average of 220,000 vehicles cross into the United States from Mexico each day, and if trade is to flourish, very few of them can be detained at the border for a thorough inspection and search. In 1995 the DEA estimated that 85 percent of illegal drugs entered the country through regular ports of entry in commercial trucks and passenger vehicles (Dunn 1996; Andreas 2000). Thus, the NAFTA-induced surge in cross-border traffic necessarily made drug smuggling easier than ever.

During the mid-1980s Ronald Reagan broadened his list of national security threats to include not only immigrants but also drugs. In 1986 he signed a secret National Security Decision Directive that named drugs as a threat to national security and authorized the military to cooperate with civilian law enforcement agencies to launch a new "war on drugs." In an era of expanding free trade and economic deregulation, of course, it was neither realistic nor feasible to clamp down seriously on cross-border traffic through ports of entry, even though the vast majority of illegal drugs entered the country through these routes. Nonetheless, something visible had to be done to signal the government's resolve to win the newly declared war.

The means chosen—to launch a massive interdiction effort concentrated largely *between* ports of entry—once again framed the issue as one of border control. In the words of a Reagan-era drug enforcement official, "We are engaged in something akin to a guerrilla war along the border against well-entrenched and well-organized trafficking groups" (quoted in Dunn 1996, 3). Once again the U.S. border was subject to invasion by dangerous foreigners who posed a threat to national security.

The framing of drugs as an issue of border control played directly into the hands of entrepreneurial bureaucrats at the INS and the Border Patrol. In 1984 Reagan administration officials formed the Southwest Border Drug Task Force to coordinate federal, state, and local agencies in developing an interdiction strategy; the Border Patrol was designated as the lead agency in the new effort. The 1986 Anti–Drug Abuse Act officially broadened the Border Patrol's duties to include narcotics as well as immigration enforcement, and soon one-third of

Figure 5.6 INS Involvement in Drug Enforcement, 1965 to 1998



Source: U.S. Immigration and Naturalization Service.

all Border Patrol agents were cross-deputized to enforce U.S. drug laws (Dunn 1996).

After 1986 the Border Patrol's involvement in drug enforcement activities skyrocketed, as revealed by figure 5.6, which shows trends in the value of narcotics seized and the number of narcotics arrests made from 1965 to 1998 (expressed relative to their 1986 values). As with the other indicators we have examined, 1986 was the turning point. Before that date the INS was hardly involved at all in drug enforcement, but after 1986 the agency's involvement rose exponentially. Between 1986 and 1998, arrests for narcotics violations increased almost thirty fold, and the dollar value of the narcotics seized grew by a factor of twelve through 1995 before declining and then recovering to reach eight in 1998. (Narcotics value is highly subjective and less reliable as an indicator than narcotics arrests.)

As a result of these trends, the Border Patrol's linewatch-hours increased rapidly after 1986, but increasingly these hours were spent in tracking drug smugglers, not in chasing undocumented immigrants or those who smuggled them. Moreover, whereas immigration enforcement yields a large number of arrests with little effort and little staff time, catching drug smugglers and confiscating their wares is much more time- and labor-intensive. Although participation in the

war on drugs brought the INS new power, prestige, and resources, increasingly these resources were divided between two mutually exclusive and competing activities.

The Symbolic Politics of Border Control

By the early 1980s Mexico-U.S. migration had evolved into a stable system based on the circulation of undocumented labor. This migratory system began to take shape in 1965 to replace the bracero system that had prevailed between 1942 and 1964. Movements under the undocumented regime were governed by stable parameters, which yielded relatively steady probabilities of first migration, border crossing, remitting, return, and remigration. Border enforcement selected for working-age males who were married but traveling without dependents. Migrants were very likely to remit money home and to return after limited sojourns north of the border. As documented in chapter 4, there is little evidence that the likelihood of undocumented migration was rising before 1986, or that the total rate of Mexico-U.S. migration exceeded that which had prevailed during the bracero era.

Nonetheless, actors inside and outside of government found it politically useful and materially profitable to make undocumented migration and drugs salient political issues during the 1980s. Framing them as issues of border control and national security, they offered U.S. citizens two new "enemies" upon which their insecurities could be projected. Both were seen to emanate from malevolent foreign sources, and both constituted grave threats to national security. Drugs were foisted upon Americans by sinister foreign cartels and malicious traffickers who were taking advantage of America's openness to flood it with cheap drugs, bringing a wave of addiction, violence, and mayhem to U.S. cities. Immigrants, especially those without documents, were depicted in one of two ways: as desperate people fleeing poverty and despair at home, or as potential terrorists who, if they did not already have terrorist aspirations when they arrived, would become easy prey for the Communist provocateurs and agents loose among them.

Having positioned drugs and immigrants as dire threats to national security, politicians created a political dynamic wherein it became difficult *not* to take some kind of dramatic action. Framing drugs and immigrants in terms of border control, the proposed solutions focused almost exclusively on creating a militarized, defensive perimeter along the nation's border with Mexico in an effort to seal off the unauthorized flows. The crucial date was 1986, when Congress

passed IRCA and President Reagan signed the national security directive declaring drugs a threat to national security.

Meanwhile, those responsible for U.S. drug demand were let off lightly. Americans were exhorted to "just say no," while large amounts of money, equipment, and personnel were thrown into interdiction efforts. These efforts concentrated on stretches of border between the points of entry through which most drugs were known to be entering. Likewise, U.S. demand for undocumented labor received short shrift compared with border defense and interdiction. Although IRCA did outlaw the hiring of undocumented workers, all that an employer had to do to escape prosecution was to show that he had seen two easily falsifiable documents: one proving identity (a driver's license) and another demonstrating the right to work (a Social Security card). The employer was under no obligation to take any steps to authenticate the documents.

Moreover, after IRCA's initial authorization of new funds for the Department of Labor to undertake work-site inspections, internal enforcement of U.S. immigration laws was quietly but steadily reduced (Andreas 2000), then all but abandoned in the late 1990s. Whereas by 1999 more than 2,000 INS agents patrolled the San Diego–Tijuana border, the number of agents stationed north of Los Angeles had fallen from 65 to 22. In 1999 only 2 percent of the INS budget was devoted to the enforcement of employer sanctions, and of the 1,700 investigators assigned to the interior, only one-fifth of their time was devoted to work-site enforcement, yielding only 340 full-time person-equivalents to monitor all jobs in the United States (Andreas 2000). In contrast, during the 1990s the Border Patrol's budget increased by a factor of six, and the number of agents doubled. As a result of this allocation of resources, INS investigations of employers for immigration violations fell from around 15,000 in 1989 to 888 in 1997, while deportations of Mexicans increased by a factor of three (Andreas 2000).

The anti-immigrant hysteria reached its peak in the mid-1990s and crested with the passage of additional "reform" legislation in 1996. With the end of the cold war and the opening of China, the foreign menaces that had dominated the American imagination since 1945 suddenly disappeared, making immigrants and drugs more salient as foreign threats and yielding an exponential growth in resources for border enforcement. The remarkable concentration of effort at the border occurred despite reports from the General Accounting Office (GAO) that "interdiction has not had—and is unlikely to have—a significant impact on the national goal of reducing drug supplies to the United States" (cited in Andreas 2000, 82). The GAO's assessment

of Operation Gatekeeper and Operation Hold-the-Line was that they were, at best, "inconclusive": data failed to indicate "whether the increased difficulty of entry has deterred the flow of illegal entries into the country . . . [or] . . . whether there had been a decrease in attempted reentries by those who had previously been apprehended" (General Accounting Office 1997, 4).

Nonetheless, political leaders in the United States prefer border policing over other approaches to dealing with the issues of drugs and immigration. This seeming contraction persists because border enforcement represents more of a ritualistic performance than an actual strategy of deterrence. As Andreas (2000, 11, emphasis in original) puts it:

> The popularity of the border as a political stage is based as much on the *expressive role* of law enforcement (reaffirming moral boundaries) as it is on the *instrumental goal* of law enforcement (effective defense of physical boundaries). High profile law enforcement campaigns that fail in their instrumental purpose can nevertheless be highly successful in their expressive function. Border control efforts are not only *actions* (a means to a stated instrumental end) but also *gestures* that communicate meaning. Even as the enforcement performance has failed to deter illegal border crossings significantly, it has nevertheless succeeded in reaffirming the importance of the border.

Thus, the border enforcement strategy that evolved in the United States after 1986 had little to do with the reality of immigration or the actual operation of a migration system whose roots could be traced back to 1942 and even before. It had much more to do with domestic fears and insecurities than with any real upsurge in undocumented migration or change in the nature of Mexican immigration. It was related more to the nervousness felt by many Americans at the increasing volume of cross-border movements of people, goods, ideas, and products—a direct result of U.S. trade policies. As the United States grew increasingly integrated with its North American neighbors, its political leaders felt a need to reassure citizens of the continued salience of the Mexico-U.S. border, and enterprising bureaucrats in the INS found it very much worth their while to provide the necessary imagery.

If this bit of political theater had had few practical consequences, then there would be little to criticize. If the only problem with pursuing integration while insisting on separation was that it was self-contradictory, hypocritical, and a waste of public money, then perhaps no one would really care. Unfortunately, however, the latest attempt by the United States to have its cake and eat it too has incurred se-

rious costs and led to a host of unforeseen and largely negative consequences for people on both sides of the border. Not only have the instrumental goals of border control (deterring undocumented immigration) not been achieved, but the net effect of America's self-contradictory policies has been to promote rather than restrict Mexican immigration, and these policies have done so under circumstances that exacerbate the negative consequences for both nations.

Chapter 6

Breakdown: Failure in the Post-1986 U.S. Immigration System

If there is one constant in U.S. border policy, it is hypocrisy. Throughout the twentieth century the United States has arranged to import Mexican workers while pretending not to. With the sole exception of the 1930s, when the Great Depression effectively extinguished U.S. labor demand, politicians and public officials have persistently sought ways of accepting Mexicans as workers while limiting their claims as human beings. Only the formula by which this sleight of hand is achieved has changed over time, shifting from the legerdemain of a legal guest-worker program between 1942 and 1964, to the Potemkin Village of circular undocumented migration from 1965 to 1985, to the smoke and mirrors of "prevention through deterrence" after 1986.

Despite these charades, the benefits of Mexico-U.S. migration have historically exceeded the costs for all concerned. Since 1986, however, the self-contradictory policy of working to consolidate North American markets while blocking the integration of one particular market has needlessly driven up the costs and reduced the benefits of transnational migration. Although the balance may still be positive, the ratio is far from optimal, and in many ways the United States is doing serious damage to the social and economic fabric of both nations. In an era of massive state-sponsored integration and continent-wide free trade, the costs of U.S. hypocrisy have become unaffordable.

The Sham of Border Control

"If a tree falls in the forest and no one hears it, has it really fallen?" That is the well-known conundrum posed for meditation by Zen Bud-